



National Crime Authority (Status and Rights of Former Chairman) Act 1984

Act No. 105 of 1984 as amended

This compilation was prepared on 27 September 2011
taking into account amendments up to Act No. 100 of 2011

The text of any of those amendments not in force
on that date is appended in the Notes section

The operation of amendments that have been incorporated may be
affected by application provisions that are set out in the Notes section

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An Act relating to the status and rights of the Honourable Donald Gerard Stewart, the former Chairman of the National Crime Authority

1 Short title [see Note 1]

This Act may be cited as the *National Crime Authority (Status and Rights of Former Chairman) Act 1984*.

2 Commencement [see Note 1]

This Act shall come into operation on the day on which it receives the Royal Assent.

3 Interpretation

In this Act:

office under the Commonwealth includes:

- (a) an office established by, or an appointment made under, a law of the Commonwealth or a law of a Territory other than the Northern Territory;
- (b) an appointment made by the Governor-General or a Minister otherwise than under such a law;
- (c) an office or appointment in the service or employment of a corporation established for a public purpose by or under a law of the Commonwealth or a law of a Territory other than the Northern Territory;
- (d) an appointment as a director of an incorporated company over which the Commonwealth is in a position to exercise control; or
- (e) an office or appointment in the service or employment of such an incorporated company.

remuneration includes any expenses of office allowance, annual allowance or other allowance in the nature of remuneration.

retirement has the same meaning as in the *Judges' Pensions Act 1968*.

4 Application

This Act applies in relation to the Honourable Donald Gerard Stewart, being the person holding office at the commencement of this Act as the Chairman of the National Crime Authority, but so applies only if he has, whether before or after the commencement of this Act, resigned his office as a Judge of the Supreme Court of New South Wales.

5 Status

The Honourable Donald Gerard Stewart shall:

- (a) during the period of his service in the office of Chairman of the National Crime Authority;
- (aa) during the period of his service in the office of Chairperson of the Resource Assessment Commission; and
- (b) during any period of service by him in another full-time office under the Commonwealth that is declared by the Governor-General by notice published in the *Gazette* to be an office to which this section applies;

have the same designation, rank, status and precedence as a Judge of the Supreme Court of the Australian Capital Territory.

7 Leave and other conditions of service

- (1) Notwithstanding section 40 of the *National Crime Authority Act 1984*, during the term of office of the Honourable Donald Gerard Stewart as Chairman of the National Crime Authority, the conditions of service (including entitlement to leave) applicable to him shall be, *mutatis mutandis*, the same as those applicable to a Judge of the Supreme Court of the Australian Capital Territory.
- (1A) Notwithstanding the *Resource Assessment Commission Act 1989*, during the term of office of the Honourable Donald Gerard Stewart as Chairperson of the Resource Assessment Commission, the conditions of service (including entitlement to leave) applicable to him shall be, with appropriate changes, the same as those applicable to a Judge of the Supreme Court of the Australian Capital Territory.

- (2) At the expiration of the term of office of the Honourable Donald Gerard Stewart as Chairperson of the Resource Assessment Commission:
- (a) subject to paragraphs (b) and (c), he is entitled to long leave under the arrangements applicable for long leave for Judges of the Supreme Court of the Australian Capital Territory;
 - (b) for the purpose of determining his entitlement, the periods of his service as Chairperson of that Commission, as Chairman of the National Crime Authority, as a Judge of the Supreme Court of New South Wales and as a Judge of the District Court of New South Wales shall be deemed to have been periods of service as a Judge of the Supreme Court of the Australian Capital Territory; and
 - (c) he is not entitled to long leave under those arrangements in respect of any period of service referred to in paragraph (b) in respect of which he has received a payment under section 4 of the *Judges (Long Leave Payments) Act 1979* as that section has effect by virtue of subsection (4) of this section.
- (3) During any period of long leave that is taken by the Honourable Donald Gerard Stewart in accordance with his entitlement under subsection (2) in respect of a period of service referred to in that subsection, he shall be paid remuneration at the rate at which remuneration is payable during that period to a Judge of the Supreme Court of New South Wales in respect of the holding of an office of Judge of that Court.
- (4) If the Honourable Donald Gerard Stewart becomes entitled to a payment under section 4 of the *Judges (Long Leave Payments) Act 1979* at a time when he holds a full-time office under the Commonwealth:
- (a) the making of the payment shall be deferred until he has ceased to hold such an office;
 - (b) his qualifying service for the purpose of calculating the amount payable shall not include any period of service in respect of which he took long leave after becoming entitled to the payment;
 - (c) the amount payable shall be calculated as if the annual rate of salary that was payable to him immediately before his retirement or death was the annual rate of salary that was

payable to a Judge of the Supreme Court of New South Wales at the time when the Honourable Donald Gerard Stewart ceased to hold a full-time office under the Commonwealth; and

- (d) if he ceased to hold a full-time office under the Commonwealth as mentioned in paragraph (a) by reason of his death, subsections 5(2), (3) and (4) of the *Judges (Long Leave Payments) Act 1979* apply in respect of him as if he had been a Judge within the meaning of that Act at the time of his death.

8 Application of Judges' Pensions Act

The application in relation to the Honourable Donald Gerard Stewart of the *Judges' Pensions Act 1968* is subject to the following provisions of this section:

- (a) service by him as Chairman of the National Crime Authority, whether the service took place before, or takes place after, the commencement of this Act, shall be deemed, for the purposes of the *Judges' Pensions Act 1968*, to have been, or to be, service as a Judge;
- (aa) service by him as Chairperson of the Resource Assessment Commission shall be taken, for the purposes of the *Judges' Pensions Act 1968*, to be service as a Judge;
- (b) upon his death or retirement, the appropriate current judicial salary in relation to him for the purposes of the *Judges' Pensions Act 1968* shall be deemed to be the salary from time to time payable to a Judge of the Supreme Court of New South Wales;
- (c) for the purposes of paragraph 6(2D)(a) of the *Judges' Pensions Act 1968*, he shall be deemed to be a judge who is to cease to hold office as a judge upon his attaining a particular age being the age:
 - (i) if subparagraph (ii) does not apply—that will be attained by him at the expiration of the period of his appointment as Chairperson of the Resource Assessment Commission; or
 - (ii) in the event of his re-appointment as such Chairperson—at the expiration of the period of such re-appointment.

- (d) if, during any period after his retirement, he holds, or performs the duties of, a full-time office under the Commonwealth, pension is not payable to him under the *Judges' Pensions Act 1968* in respect of that period.

9 Modification of Administrative Appeals Tribunal Act

- (1) Notwithstanding anything contained in the *Administrative Appeals Tribunal Act 1975*:
 - (a) the Honourable Donald Gerard Stewart may be appointed under that Act to hold office as a full-time Deputy President of the Administrative Appeals Tribunal and may be so appointed notwithstanding that he holds the office of Chairman of the National Crime Authority;
 - (b) if he is so appointed, he shall be paid the same remuneration as is payable to a Deputy President who is not a Judge within the meaning of that Act; and
 - (c) he may continue to hold office as a full-time Deputy President notwithstanding that he holds the office of Chairperson of the Resource Assessment Commission.
- (2) If the Honourable Donald Gerard Stewart is appointed to hold office as a full-time Deputy President of the Administrative Appeals Tribunal by an appointment that takes effect at a time when he holds the office of Chairman of the National Crime Authority then, while he holds the second-mentioned office, he is not entitled to receive any remuneration in respect of his holding the first-mentioned office except to the extent (if any) to which the remuneration that, but for this subsection, would be payable to him in respect of his holding the first-mentioned office exceeds the remuneration payable to him in respect of his holding the second-mentioned office.
- (3) If the Honourable Donald Gerard Stewart holds office as a full-time Deputy President of the Administrative Appeals Tribunal while he holds the office of Chairperson of the Resources Assessment Commission, then, while he holds both offices, he is not entitled to receive any remuneration in respect of his office of Deputy President except to the extent (if any) to which the remuneration that, but for this subsection, would be payable to him in respect of his office of Deputy President exceeds the

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remuneration payable to him in respect of his office of Chairperson.

Table of Acts

Notes to the *National Crime Authority (Status and Rights of Former Chairman) Act 1984*

Note 1

The *National Crime Authority (Status and Rights of Former Chairman) Act 1984* as shown in this compilation comprises Act No. 105, 1984 amended as indicated in the Tables below.

Table of Acts

Act	Number and year	Date of Assent	Date of commencement	Application, saving or transitional provisions
<i>National Crime Authority (Status and Rights of Chairman) Act 1984</i>	105, 1984	15 Oct 1984	15 Oct 1984	
<i>Crimes Legislation Amendment Act (No. 2) 1988</i>	66, 1988	15 June 1988	Ss. 1–3, 12 and 20–23: Royal Assent Ss. 4–11: 13 July 1988 Ss. 13–19: 1 Dec 1988 (see <i>Gazette</i> 1988, No. S366) S. 24: 15 June 1988 Part VI (ss. 25–28): 1 Sept 1988 (see s. 2(5) and <i>Gazette</i> 1988, No. S256)	—
as amended by <i>Law and Justice Legislation Amendment Act 1988</i>	120, 1988	14 Dec 1988	Part VII (ss. 25–27): 15 June 1988 (a)	—
<i>Resource Assessment Commission Act 1989</i>	94, 1989	28 June 1989	28 June 1989	S. 60(2)
<i>Statute Stocktake Act (No. 1) 2011</i>	100, 2011	15 Sept 2011	Schedule 1 (item 7): 16 Sept 2011	—

National Crime Authority (Status and Rights of Former Chairman) Act 1984

Act Notes

- (a) The *Crimes Legislation Amendment Act (No. 2) 1988* was amended by Part VII (sections 25–27) only of the *Law and Justice Legislation Amendment Act 1988*, subsection 2(4) of which provides as follows:
- (4) Part VII shall be taken to have commenced on 15 June 1988.

Table of Amendments

Table of Amendments

ad. = added or inserted am. = amended rep. = repealed rs. = repealed and substituted

Provision affected	How affected
Title	am. No. 94, 1989
S. 1	am. No. 94, 1989
S. 5	am. No. 94, 1989
S. 6	am. No. 94, 1989 rep. No. 100, 2011
S. 7	am. No. 94, 1989
S. 8	am. No. 66, 1988; No. 94, 1989
S. 9	am. No. 94, 1989